BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

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UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. DIANA CANDELARIA, in her individual capacity; and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity, Defendants.	**Case No. 2:26-cv-00983-DC-CSK (PS)** **NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE** [Fed. R. Civ. P. 41(a)(1)(A)(i)] Judge: Hon. Dena M. Coggins Mag. Judge: Hon. Chi Soo Kim FAC Filed: April 29, 2026

TO THE CLERK OF THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that, pursuant to Rule 41(a)(1)(A)(i) of the Federal Rules of Civil Procedure, Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, hereby voluntarily dismisses the above-captioned action in its entirety, without prejudice, as to all Defendants, including Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity.

Plaintiff is entitled to dismiss this action as a matter of right because no Defendant has been served with process, has appeared, or has served either an answer or a motion for summary judgment. (Fed. R. Civ. P. 41(a)(1)(A)(i).) Plaintiff initiated this action on March 19, 2026 and applied to proceed in forma pauperis under 28 U.S.C. § 1915 (ECF Nos. 1, 2); after the Court denied that application without prejudice (ECF No. 3), Plaintiff filed a renewed IFP application and the operative First Amended Complaint on April 29, 2026 (ECF Nos. 4, 5). Because IFP screening under 28 U.S.C. § 1915(e) remains pending, no summons has issued and neither Defendant has been served or has entered an appearance. The only filings in this action are

Plaintiff's own papers and the Magistrate Judge's June 15, 2026 Findings and Recommendations (ECF No. 6), which recommend that Plaintiff's IFP application be denied and the First Amended Complaint be dismissed without leave to amend. Neither the F&R, Plaintiff's June 18, 2026 Objections thereto, nor Plaintiff's July 9, 2026 Notice of Supplemental Authority is an answer or a motion for summary judgment within the meaning of Rule 41(a)(1)(A)(i). (See *Hamilton v. Shearson-Lehman American Express, Inc.*, 813 F.2d 1532, 1534-35 (9th Cir. 1987) [right to dismiss under Rule 41(a)(1) is absolute until the defendant serves an answer or motion for summary judgment]; *Concha v. London*, 62 F.3d 1493, 1506 (9th Cir. 1995) [same, as to a Rule 12(b)(6) motion]; *Miller v. Terramite Corp.*, 114 F. App'x 536, 539 (4th Cir. 2004) [same rule applies a fortiori where the defendant has not yet been served].)

This is Plaintiff's first dismissal of any action based on or including the claims asserted against these Defendants. Plaintiff notes that Matter 1 of Plaintiff's related-case docket, *Newanforbi v. State of California, et al.*, No. 2:25-cv-01460-DC-CSK (E.D. Cal.), arises from the same November 1, 2024 CHP encounter but asserts distinct Fourth and Fourteenth Amendment claims against different defendants (CHP Officers Meza-Gonzalez and Melano) arising from the traffic stop itself, not the subsequent DMV APS hearing at issue here; a voluntary dismissal of that separate action accordingly does not implicate the two-dismissal rule of Rule 41(a)(1)(B) as to the claims dismissed here. Because this is the first voluntary dismissal by Plaintiff of any action based on or including the claims asserted in this action, the dismissal is **without prejudice** and does not operate as an adjudication on the merits. (Fed. R. Civ. P. 41(a)(1)(B).) No court order is required to effect this dismissal. (See *Commercial Space Mgmt. Co. v. Boeing Co.*, 193 F.3d 1074, 1077-78 (9th Cir. 1999) [Rule 41(a)(1) notice of dismissal is self-executing and terminates the action automatically upon filing].) The Clerk of the Court is respectfully requested to close the file. Each party shall bear its own costs and attorneys' fees, if any.

Dated: August 12, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

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CERTIFICATE OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that on August 12, 2026, I caused a true and correct copy of the foregoing **NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE** to be filed with the Clerk of the Court through the Court's CM/ECF system, which will provide electronic notice to any counsel of record registered through CM/ECF. As of the date of this filing, neither Defendant Diana Candelaria nor Defendant Steve Gordon has been served with process or has appeared in this action; accordingly, no further service is required as to either Defendant under Fed. R. Civ. P. 5(a)(2).

Executed on August 12, 2026, at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per